

23STCV31858 23STCV31858

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-02

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Case Number: 23STCV31858 Hearing Date: July 2, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE

RULING

NASSER ESHRAGHI, et al.,

Plaintiffs,

v.

LAGUNA POINT PROPERTIES, LLC, et
al.,

Defendants.

Case No:

23STCV31858

Hearing Date: July 2, 2026

Calendar Number: 5

Defendant SBDTLA 1, LLC moves to compel Plaintiff Nasser

Eshraghi to serve initial, verified responses, without objections, to the defendant's Request for Production of Documents (Set Two), Form Interrogatories (Set Two), and Requests for Admissions (Set One). The defendant also moves for sanctions of \$1,610 against the plaintiff and his attorney of record, Khashayar Eshraghi.

The motions are DENIED.

Plaintiff Nasser Eshraghi's request for sanctions against the defendant for bringing these motions is GRANTED as follows.

Defense counsel, Gordon Rees Scully Mansukhani, LLP's attorneys Christine D. Barker and Alexandra Liston, are each ordered to pay the plaintiff sanctions of \$500 each within 30 days of this ruling.

Background

This is a landlord-tenant case. Plaintiffs Nasser Eshraghi, Khashayar Eshraghi, and Thomas Franklin initiated this action on December 29, 2023.

On May 2, 2025, Plaintiffs filed a Fourth Amended Complaint ("FAC") against SBDTLA 1, LLC, SBDTLA 2, LLC, SBDTLA 3, LLC, and SBDTLA 4, LLC, among others, alleging causes of action for (1) breach of implied warranty of habitability; (2) negligent maintenance; (3) nuisance; (4) intentional infliction of emotional distress; (5) constructive eviction; (6) breach of the covenant of quiet enjoyment; (7) violation of the Housing Act; and (8) violation of Los Angeles Municipal Code (private right of action).

On April 7, 2026, SBDTLA 1 ("Defendant") filed the instant three motions to compel Plaintiff Nasser Eshraghi ("Plaintiff") to serve initial, verified responses without objections to Request for Production of Documents (Set Two), Form Interrogatories (Set Two), and Requests for Admissions (Set One).

On June 18 and June 22, 2026, Plaintiff filed oppositions to the motions.

On June 25, 2026, Defendant filed its replies.

Legal Standard

A

party responding to demands for inspection, requests for admissions, and interrogatories has 30 days after service of the discovery requests to serve responses unless the court has ordered or parties have agreed otherwise. (Code Civ. Proc., §§ 2031.260, subd. (a) [demands for inspection]; 2031.720, subd. (a) [stating that the parties can agree to extend the deadline for responses to demands for inspection]; 2033.250, subd. (a) [requests for admission]; 2033.260, subd. (a) [stating that parties may extend the deadline to respond to requests for admission]; 2030.250, subd. (a) [interrogatories]; 2030.260, subd. (a) [stating that the parties can agree to extend the deadline for interrogatories].)

Failure to serve timely responses to requests for production, requests for admission, and interrogatories results in the responding party waiving all objections, including those based on privilege. (Code Civ. Proc., §§ 2031.300, subd. (a); 2033.280, subd. (a); 2030.290, subd. (a).)

A court can relieve the responding party from the waiver of objections only upon determining that both of the following conditions are satisfied: (1) the responding party has subsequently served responses that are in substantial compliance with relevant statutes, and (2) the responding party's failure to serve timely responses was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., §§ 2031.300, subd. (a) [requests for production]; 2033.280, subd. (a) [requests for admissions]; 2030.290, subd. (a) [interrogatories].)

““Substantial compliance, as the phrase is used in the decisions, means actual compliance in respect to the substance essential to every reasonable objective of the statute.” [Citation.] Where there is compliance as to all matters of substance technical deviations are not to be given the stature of noncompliance. [Citation.] Substance prevails over form.’ [Citations.]” (St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 779.)

Discussion

As an

initial matter, Defendant argues that the oppositions are untimely because they

were “served two court days late on June 19, 2026, even though the statutory deadline was June 17, 2026. An untimely opposition may be disregarded in its entirety.” (Replies in Support of Motions, p. 2:1-5.)

The

Court disagrees with Defendant that the oppositions are untimely for the following reasons. “All papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days ... before the hearing.” (Code Civ. Proc., § 1005, subd. (b).) However, Code of Civil Procedure section 1010.6 extends the deadline by two court days for motions that were served electronically. (See *id.* at § 1010.6, subd. (a)(3)(B)) [“Any period of notice, or any right or duty to do any act or make any response within any period or on a date certain after the service of the document, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days ...”].) Here, Defendant served the motions electronically. (Motions, Proofs of Service pages.) Therefore, the deadline for Plaintiff to file the oppositions was Monday, June 22, 2026, because the two-court day extension fell on Friday, June 19, 2026, which was a Court holiday. Plaintiff filed and served the oppositions by June 18 and June 22, 2026, making them timely.

On the merits, defense counsel attests to the following facts in support of the three motions. On January 14, 2026, Defendant served Plaintiff with Request for Production of Documents (Set Two), Form Interrogatories (Set Two), and Requests for Admissions (Set One). (Motions, Declarations of Alexandra E. Liston, ¶ 2; Exh. 1 – copies of the discovery requests.) The parties agreed to extend Plaintiff’s deadline to respond to the discovery requests to March 3, 2026. (*Id.* ¶ 4.) On March 3, 2026, however, Plaintiff served unverified responses to the discovery requests. (*Id.* ¶ 5; Exh. 4 – copies of the responses.) Despite defense counsel’s meet and confer efforts, as of April 3, 2026, no verifications had been received. (*Id.* ¶ 9.) Defendant now moves for an order compelling Plaintiff to serve verified, objection-free responses to the discovery requests.

In

opposition, Plaintiff’s counsel testifies that he received the verifications on April 6, 2026, by first class mail from Plaintiff, who is nearing 90 years old, and is not tech savvy. (See e.g., Opposition to Motion to Compel Requests for Admission, Declaration of Khashayar Eshraghi (“Eshraghi Decl.”) ¶ 8.) Counsel then emailed the verifications to defense counsel on April 6, 2026, at 5:42 pm

Eastern Standard Time. (Id. ¶ 10.) Plaintiff argues that the motions are moot because the verifications were submitted on April 6, 2026, before Defendant filed these motions on April 7, 2026.

In reply, defense counsel acknowledges that Plaintiff served verifications on April 6, 2026. (Replies, Liston Decl., ¶ 2.)

Despite that fact, Defendant argues that the motions are not moot because Plaintiff waived the objections by filing responses without verifications, and Plaintiff “delivered verifications on the same day Defendant filed the motion.” (Replies, p. 2:10-11.)

The Court disagrees with Defendant on multiple grounds.

First, the parties’ papers show that Plaintiff submitted the verifications in the afternoon of April 6, 2026, the day before Defendant filed the motions, not on the “same day” that Defendant filed the motions in the morning and afternoon of April 7, 2026.

Second, Defendant is correct that “[u]nsworn responses are tantamount to no responses at all.” (Appleton v. Superior Court (1988) 206 Cal. App. 3d 632, 635-636.)

However, verifications are not required for objections, and there is no waiver of objections where a party serves objections along with unverified, substantive responses. (See Food 4 Less Supermarkets, Inc. v. Superior Court (1995) 40 Cal.App.4th 651, 657–658 [“What then is the appropriate procedure if a party tenders a hybrid response containing objections and fact-specific responses? Given our analysis, there is no need to verify that portion of the response containing the objections. Thus, if the response is served within the statutory time period, that portion of the response must be considered timely notwithstanding the lack of verification. The omission of the verification in the portion of the response containing fact-specific responses merely renders that portion of the response untimely and therefore only creates a right to move for orders and sanctions ... as to those responses but does not result in a waiver of the objections made. The only situation in which lack of verification could both render the response untimely and result in a waiver of objections ... is when the initial unverified response contains no objections. And in a different factual vein, subdivision

(k) could result in a waiver of objections if the party fails to file any response within the statutory time period. Neither of the latter two situations [were] present [in that case or present in this case (*italics in original*)"]].)

Here, Plaintiff did not waive the objections. The parties agreed to give Plaintiff until March 3, 2026, to serve responses. By Defendant's own admission, Plaintiff served the objections on that date, making them timely. Therefore, Plaintiff did not waive the objections he served to the discovery.

For those reasons, the Court denies Defendant's motions.

In his three oppositions, Plaintiff seeks the following sanctions against Defendant and its counsel for bringing these unnecessary motions: \$1,307 in connection with the Form Interrogatories; \$1,307 for the Request for Production motion, and \$1,477 for the Requests for Admission motion (i.e., total sanctions of \$4,091). Those sanctions are based on Plaintiff's counsel's billing rate of \$320 per hour and also include \$37 court appearance costs for each motion. (Eshraghi Decl., ¶ 20.)

Based on the Court's findings above, the Court finds imposition of sanctions against defense counsel proper, but the Court also finds the requested sanctions excessive given the routine nature of these ordinary discovery motions.

Therefore, the Court grants Plaintiff's request for sanctions against defense counsel (i.e., Gordon Rees Scully Mansukhani, LLP's attorneys Christine D. Barker and Alexandra Liston, who are representing Defendant in this case). The attorneys are each ordered to pay Plaintiff sanctions of \$500 within 30 days of this ruling.